

Statement of SAICHARI, C. J.

SUPREME COURT OF THE UNITED STATES

BELLAREVELATION *v.* CALILAHAN, ET AL.

ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED
STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

No. 26–12. Decided July 12, 2026

The petition for a writ of certiorari is denied.

JUSTICE INSLEE took no part in the consideration or decision of this petition.

Statement of CHIEF JUSTICE SAICHARI respecting the denial of certiorari.

Look, it's a lot of questions in the Notice of Appeal and the Corrected Notice of Appeal. I would love to answer some of these formally. Alas, we declined to hear the Petitioner's case as judicial review of impeachment is non-justiciable as it presents a political question. See *Nixon v. United States*, 506 U. S. 224 (1993) where this Court made it clear, "A controversy is nonjusticiable where there is "a textually demonstrable constitutional commitment of the issue to a coordinate political department; or a lack of judicially discoverable and manageable standards for resolving it" *Baker v. Carr*, 369 U. S. 186, 217. These two concepts are not completely separate; the lack of judicially manageable standards may strengthen the conclusion that there is a textually demonstrable commitment to a coordinate branch." As Hamilton observed in *The Federalist No. 79*, the "precautions for [judges'] responsibility, are comprised in the article respecting impeachments," which remains "the only provision on the point, which is consistent with the necessary independence of the judicial character." By committing this power uniquely to Congress, the constitution locks out the judiciary. The federal judiciary has absolutely no role to play, no oversight to offer, and no jurisdiction to exercise at any stage of the impeachment process. See *Nixon*, 506 U. S. at 235.

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The Petitioner’s primary grievance is that the impeachment articles that allege an abuse of judicial authority, breach of ethics, and the use of artificial intelligence are rushed, baseless, and built on a flawed record. Even if we were to grant this on its face and that the Petitioner’s evidentiary record is objective, the language of the Constitution itself is very clear: the power of impeachment is committed entirely to the Legislature. See *Nixon*, 506 U. S., at 235 (concluding that “the Judiciary, and the Supreme Court in particular, were not chosen to have any role in impeachments,” because “impeachment was designed to be the only check on the Judicial Branch by the Legislature”). As this Court additionally observed in *Nixon*, “[j]udicial involvement in impeachment proceedings, even if only for purposes of judicial review, is counterintuitive because it would eviscerate the ‘important constitutional check’ placed on the Judiciary” and would disastrously “place final reviewing authority with respect to impeachments in the hands of the same body that the impeachment process is meant to regulate.”

Naturally the Petitioner raises a legitimate albeit political point: no legislator in their right mind would expressly state that they’re impeaching a judge for their good-faith, lawful decisions—they would instead allege an abuse of authority and breach of ethics. And let’s assume the Petitioner is right: that the articles of impeachment are baseless and outright fabricated. If we were to grant certiorari, any competent Respondent would raise the evidentiary record. This Court has already made it very clear: we won’t touch that. As was expressly held in *BellaRevelation v. Calilahan*, 1 U. S. ____ (2026):

“The declaration Petitioner seeks would require this Court to examine testimony before a congressional committee, compare that testimony against committee findings, and declare whether the legislative branch’s impeachment-related factual characterizations were materially false. That is precisely the sort of inquiry

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foreclosed by the political-question principles restored in Part III. Under *Baker*, courts do not decide questions textually committed to a coordinate branch or questions lacking judicially manageable standards. *Baker v. Carr* 369 U. S. 186, 217 (1962).”

The Petitioner was absolutely correct to bring up the Thirty-First Amendment if the House failed to transmit the Articles appropriately and if it failed to record the votes: that itself is an express constitutional limitation. However, the Petitioner asserts the Twenty-Eighth Amendment is an express constitutional limitation that somehow opens the door for judicial management of legislative impeachments. It simply doesn’t. How do I know this? To quote Aslan in the 2005 film adaptation, “Do not cite the deep magic to me, Witch; I was there when it was written.” *The Chronicles of Narnia: The Lion, the Witch and the Wardrobe* (Walt Disney Pictures 2005). Though for a citation in this Court, “This is very clear from the intent of the Framers—I would know because I was there” See *Odure v. Federal Election Commission*, 1 U. S. ____ (2026) (Saichari, J., concurring). The explicit text of the second clause reads, “[t]he authority to suspend or sanction a judge of the United States as provided in this article shall be vested in the Supreme Court.” The text itself establishes an internal, parallel system of judicial discipline that is completely distinct from legislative impeachment. The Judiciary governs its own internal sanctions, while Congress retains absolute supremacy over the mechanics of impeachment. The Petitioner argues that the same constitutional floor applies to impeachment, that being willful misconduct in office, willful and persistent failure to perform judicial duties, or conduct prejudicial to the administration of justice. Having a role in framing the Constitution of RxUSA, no, it doesn’t have the same floor. The Supreme Court may refer disciplinary measures to Congress for impeachment, but Congress is still the ultimate authority. Congress may determine what good behavior is and if a judge is not in

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good behavior through its inherent inquest power and the power to impeach.

As JUSTICE INSLEE accurately observed in the District Court, Congress is entirely permitted to conduct and execute “crony impeachments” that are “baselessly grounded with loose evidence, unsupported facts, rushed inquiries, and little thought involved.” *BellaRevelation v. dannybec, et al.*, No. 1:26-cv-0041, slip op. at 5 (D.D.C. July 8, 2026). While the common complaints that Congress is “dumb, unintelligent, lazy, and slow” are, as the court noted, “not entirely meritless,” the Constitution ultimately leaves the target of those inquiries at the mercy of the legislature’s absolute, independent political discretion. *Id.* And as Justice Feelings crudely stated in *In re Hastert Clause*, 1 U. S. ____ (2026), “[t]he average citizen of our nation is no smarter than a potato” if this is true, then Congress may be a warehouse of potatoes with protective details and an office SWAT team. Alas, as established by the absolute lack of judicially manageable standards outlined in *Baker* and reinforced on page 235 of *Nixon*, the third branch has no role to play, no veto to wield, and no power to intervene. See *Nixon*, 506 U.S., at 235.